

22STCV28415 22STCV28415

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-07

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Case Number: 22STCV28415 Hearing Date: July 7, 2026 Dept: 617

Dept.

617

Date:

7-7-26

Case

#: 22STCV28415

Trial

Date: None Set

SET ASIDE ORDER CONSOLIDATING CASES

MOVING

PARTY: Plaintiff, Gail Wiggan, in pro per

RESPONDING

PARTY: Defendants, Interinsurance Exchange of the Automobile Club and Safe-Guard
Products, LLC

RELIEF

REQUESTED

Motion

to Set Aside and Vacate Order Consolidating Cases

SUMMARY

OF ACTION

Plaintiff

Gail Wiggan filed the instant breach of contract action against Defendants Interinsurance Exchange of the Automobile Club, American Credit Acceptance, and Safe-Guard Products, LLC. Wiggan alleges that after her car was totaled, Interinsurance Exchange of the Automobile Club (Interinsurance Exchange) offered to pay her lender, American Credit Acceptance, a certain sum which varied depending on whether she chose to retain the car. If the amount paid did not fully satisfy the amount Wiggan owed, a claim would need to be filed with Safe-Guard Products to cover the shortfall. Wiggan alleges that after she elected to retain the car, Interinsurance Exchange informed her that American Credit Acceptance would not allow her to do so and would not accept payments from Interinsurance Exchange.

RULING: Off Calendar.

On

April 7, 2026, the Court continued Plaintiff's motion to set aside and vacate the August 12, 2024 order consolidating this case and the related case (22STCV28591) for supplemental briefing on whether the consolidation order is void for want of stipulation or noticed motion. In light of the briefing submitted by Interinsurance Exchange and Safe-Guard Products, the Court takes the motion off calendar. On September 12, 2023 and February 25, 2025, the Court stayed the action as to American Credit Acceptance and Interinsurance Exchange, respectively, pending resolution of arbitration between Plaintiff and American Credit Acceptance. The action remains stayed and the hearing is vacated.

Plaintiff

to give notice.